

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

DAMON JACKSON,

Plaintiff,

-against-

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER
MICHELLE COVINGTON, Tax No. 948819, SERGEANT
FRANKLIN BONILLA, Tax No. 943101, POLICE
OFFICER RAMON RODRIGUEZ, Shield No. 13884,
POLICE OFFICER GIL, POLICE OFFICER
LOMBARDO, POLICE OFFICER LUIS ALICEA, Shield
No. 9537, SERGEANT DIAZ, Tax No. 941658,
SERGEANT CHASE MANERI, Shield 3107, and POLICE
OFFICERS JOHN DOES NUMBERS ONE THROUGH
TEN,

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Bronx
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 17, 2018

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER MICHELLE COVINGTON, Tax No. 948819, 48th Precinct, 450
Cross Bronx Expy, Bronx, NY 10457
SERGEANT FRANKLIN BONILLA, Tax No. 943101, 48th Precinct, 450 Cross Bronx
Expy, Bronx, NY 10457
POLICE OFFICER RAMON RODRIGUEZ, Shield No. 13884, 48th Precinct, 450 Cross
Bronx Expy, Bronx, NY 10457
POLICE OFFICER GIL, 48th Precinct, 450 Cross Bronx Expy, Bronx, NY 1045
POLICE OFFICER LOMBARDO, 48th Precinct, 450 Cross Bronx Expy, Bronx, NY
10457
POLICE OFFICER LUIS ALICEA, Shield No. 9537, 48th Precinct, 450 Cross Bronx
Expy, Bronx, NY 10457
SERGEANT DIAZ, Tax No. 941658, 48th Precinct, 450 Cross Bronx Expy, Bronx,
NY 10457
SERGEANT CHASE MANERI, Shield 3107, 48th Precinct, 450 Cross Bronx Expy,
Bronx, NY 10457

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No. 9537, SERGEANT DIAZ, Tax No. 941658,
SERGEANT CHASE MANERI, Shield 3107, and POLICE
OFFICERS JOHN DOES NUMBERS ONE THROUGH
TEN,

Defendants.

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff DAMON JACKSON, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On January 25, 2016, at approximately 4:00 p.m., plaintiff Damon Jackson, while lawfully present in front of 711 Fairmont Place, Bronx, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. Plaintiff was then transported to the 48th Precinct against his will where he was strip searched without any legal justification. Plaintiff was maliciously prosecuted and denied the right to due process and a fair trial until February 7, 2017, when all criminal charges brought against plaintiff were dismissed and sealed in their entirety. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, strip searched, confined, falsely arrested, maliciously prosecuted, and denied plaintiff the right to due process in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff DAMON JACKSON is a resident of the state of New York.

3. POLICE OFFICER MICHELLE COVINGTON, Tax No. 948819, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER MICHELLE COVINGTON, Tax No. 948819, is and was at all times relevant herein, assigned to the 48th Precinct.

5. POLICE OFFICER MICHELLE COVINGTON, Tax No. 948819, is being sued in his individual and official capacity.

6. SERGEANT FRANKLIN BONILLA, Tax No. 943101, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT FRANKLIN BONILLA, Tax No. 943101, is and was at all times relevant herein, assigned to the 48th Precinct.

8. SERGEANT FRANKLIN BONILLA, Tax No. 943101, is being sued in her individual and official capacity.

9. POLICE OFFICER RAMON RODRIGUEZ, Shield No. 13884, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. POLICE OFFICER RAMON RODRIGUEZ, Shield No. 13884, is and was at all times relevant herein, assigned to the 48th Precinct.

11. POLICE OFFICER RAMON RODRIGUEZ, Shield No. 13884, is being sued in his individual and official capacity.

12. POLICE OFFICER GIL, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. POLICE OFFICER GIL, is and was at all times relevant herein, assigned to the 48th Precinct.

14. POLICE OFFICER GIL is being sued in his individual and official capacity.

15. POLICE OFFICER LOMBARDO, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. POLICE OFFICER LOMBARDO, is and was at all times relevant herein, assigned to the 48th Precinct.

17. POLICE OFFICER LOMBARDO, is being sued in his individual and official capacity.

18. POLICE OFFICER LUIS ALICEA, Shield No. 9537, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. POLICE OFFICER LUIS ALICEA, Shield No. 9537, is and was at all times relevant herein, assigned to the 48th Precinct.

20. POLICE OFFICER LUIS ALICEA, Shield No. 9537, is being sued in his individual and official capacity.

21. SERGEANT DIAZ, Tax No. 941658, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

22. SERGEANT DIAZ, Tax No. 941658, is and was at all times relevant herein, assigned to the 48th Precinct.

23. SERGEANT DIAZ, Tax No. 941658, is being sued in his individual and official capacity.

24. SERGEANT CHASE MANERI, Shield 3107, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

25. SERGEANT CHASE MANERI, Shield 3107, is and was at all times relevant herein, assigned to the 48th Precinct.

26. SERGEANT CHASE MANERI, Shield 3107, is being sued in his individual and official capacity.

27. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

28. Police Officers John Does #1-10 are being sued in their individual and official capacities.

29. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

30. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

31. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

32. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on April 10, 2018.

33. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

34. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

35. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

36. On January 25, 2016, at approximately 4:00 p.m., plaintiff was lawfully present in front of 711 Fairmont Place, Bronx, New York, when the defendant police officers unlawfully stopped, questioned, and frisked plaintiff without reasonable suspicion, probable cause, or any legal justification.

37. At no time relevant herein did plaintiff commit a crime or violate the law, nor did the defendant police officers have any objective basis to accuse plaintiff of committing a crime or violating the law in any way.

38. The officers did not recover any illegal drugs, weapons or contraband from plaintiff or from his possession, custody, or control.

39. Nevertheless, plaintiff was unlawfully handcuffed and arrested by the defendant police officers without legal justification or probable cause.

40. Plaintiff was transported by the defendant police officers to the 48th Precinct against his will, where he was photographed, fingerprinted, searched, and then placed in a holding cell by the defendants.

41. At the 48th precinct, defendants conducted an unlawful strip search of plaintiff even though they did not recover any weapons, drugs, or contraband from plaintiff during the initial search, and had no reason to believe plaintiff was hiding contraband on his person, causing humiliation and emotional distress.

42. At no time did the defendant police officers recover any drugs, contraband or other illegal paraphernalia from plaintiff.

43. After many hours in unlawful custody, plaintiff was transported to Bronx County Central Booking and placed in a holding cell.

44. The defendant police officers provided the District Attorney's Office with false, misleading and/or incomplete information which allegedly led them to believe that plaintiff committed a crime.

45. Based upon the false, misleading and/or incomplete information provided to the District Attorney's Office by the defendant police officers, a prosecution was initiated against plaintiff.

46. On January 26, 2016 at approximately 10:00 a.m., after approximately 18 hours in custody, plaintiff was arraigned in Bronx County Criminal Court and charged with crimes he did not commit and that the defendant officers had no basis to accuse him of committing.

47. The officers unlawfully charged plaintiff with Criminal Sale of a Controlled Substance in the Third Degree, Criminal Possession of a Controlled Substance in the Third Degree, Criminal Sale of a Controlled Substance in the Fifth Degree, Criminal Possession of a Controlled Substance in the Fifth Degree, and Criminal Possession of a Controlled Substance in the in the Seventh Degree, without probable cause or legal justification.

48. The judge set bail, which plaintiff was unable to post.

49. Plaintiff was remanded to Department of Correction custody for approximately one week until plaintiff was able to post bail and was released from custody.

50. Plaintiff was forced to appear in court on approximately 10 occasions before all charges were dismissed and sealed on February 7, 2017.

51. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, strip search, seizure, false arrest and imprisonment, malicious prosecution, and denial of due process and the right to a fair trial against plaintiff.

52. Additionally, there is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally strip search individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual secreted contraband, evidence, or has a weapon inside a body cavity as required by Sarnicola v. The County of Westchester, 01 Civ. 6078, 2002 U.S. Dist. LEXIS 20305 at *28-29 (S.D.N.Y. October 23, 2002).

53. New York City Police Officers have testified under oath that it is the policy, practice, and custom of the New York City Police Department to conduct strip searches of every person that is arrested. United States v. Gonzalez, 08 Cr 363 (BSJ), 2009 U.S. Dist. LEXIS 59742 at *7 (S.D.N.Y. March 2, 2009).

54. In fact, the Honorable Barbara S. Jones presiding in the Southern District of New York held that “there is a ‘[NYPD] departmental policy of strip searching all arrestees without making any assessment of particularized circumstances.’” Gonzalez, 2009 U.S. Dist. LEXIS 59742 at *20 (S.D.N.Y. March 2, 2009).

55. As a result of defendant City of New York and the New York City Police Department’s deliberate indifference about the fact that New York City Police Officers routinely conduct strip searches without reasonable suspicion and/or probable cause to believe a prisoner has secreted contraband underneath his clothing, there is a pattern, policy, custom or practice of New York City Police Officers strip searching individuals without a factual basis that establishes probable cause and a legal basis to conduct the strip search..

56. The unlawful stop, question, frisk, search, strip search, false arrest and false imprisonment, malicious prosecution, and denial of a right to fair trial by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff’s Fourth and Fourteenth Amendment Rights

57. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 56 with the same force and effect as if more fully set forth at length herein.

58. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, and frisked, unlawfully seized, unlawfully searched, strip searched, falsely arrested, and falsely imprisoned, maliciously prosecuted plaintiff, without reasonable suspicion and/or probable cause, in violation of plaintiff’s right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

59. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

60.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

61. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

63. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

64. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

65. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

66. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

67. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

68. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

69. The conduct of defendants in stopping, frisking, and searching plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

70. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

73. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

74. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 73 with the same force and effect as if more fully set forth at length herein.

75. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

76. Defendants lacked probable cause to search plaintiff.

77. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

80. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

81. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein.

82. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Damon Jackson. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

83. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

84. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

85. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

86. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

87. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Denial of Right to Fair Trial/Due Process

88. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 87 with the same force and effect as if more fully set forth at length herein

89. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

90. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

91. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

92. In withholding/creating false evidence against plaintiff Damon Jackson, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

93. As a result of the foregoing, plaintiff Damon Jackson, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

94. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

95. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

96. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Malicious Prosecution

97. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 97 with the same force and effect as if more fully set forth at length herein.

98. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

99. Defendants commenced and continued a criminal proceeding against plaintiff.

100. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

101. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

102. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

103. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

104. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

105. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Unlawful Strip Search

106. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 105 with the same force and effect as if more fully set forth at length herein.

107. Plaintiff was strip-searched by defendants without an individualized reasonable suspicion or probable cause to believe plaintiff was concealing weapons or other contraband underneath his clothing based on a crime charged, the particular characteristics of the arrestee, and/or the circumstances of the arrest.

108. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

109. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Unlawful Strip-Searching All Prisoners Arrested For A Drug Related Crime

110. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 109 with the same force and effect as if more fully set forth at length herein.

111. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

112. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to, illegally strip searching individuals without a specific, articulable factual basis supporting a reasonable suspicion and probable cause to believe the individual secreted contraband, evidence, or has a weapon inside a body cavity as required by Sarnicola v. The County of Westchester, 01-CIV-6078, 2002 U.S. Dist. LEXIS 20305 at *28-29 (S.D.N.Y. Oct.

23, 2002), as well as inadequate screening, hiring, retaining, training, and supervising its employees with respect to this issue.

113. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

114. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

115. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

116. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully strip searched at the 46th Precinct by the individually named defendant police officers.

117. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

TENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

118. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 117 with the same force and effect as if more fully set forth at length herein.

119. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

120. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION**Failure to Intervene**

121. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 1120 with the same force and effect as if more fully set forth at length herein.

122. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

123. Defendants failed to intervene to prevent the unlawful conduct described herein.

124. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

125. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

126. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

127. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

128. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

129. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Damon Jackson demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
May 17, 2018

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the Damone are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
May 17, 2018

/s/
STUART E. JACOBS